



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB2323: warranties; leased vehicles; lessee; definition

CARTER P FLOOR AMENDMENT

1. Adds back, to the definition of *consumer*, that a purchaser *other than for the purposes of resale* of a vehicle is a valid consumer that is entitled to warranty enforcement.
2. Reinstates the restriction of warranty enforcement from the sale of a motor vehicle to a purchaser for the purpose of resale for profit.
3. Makes technical changes.

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2/10/2026

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CARTER P FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2323
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 44-1261, Arizona Revised Statutes, is amended to
3 read:

4 44-1261. Definitions; exemptions

5 A. In this article, unless the context otherwise requires:

6 1. "Consumer" means the purchaser[, other than for] [THE] [purposes
7 of resale.] OR LESSEE of a motor vehicle[.] OR any person to whom the
8 motor vehicle is transferred TO during the duration of an express warranty
9 applicable to the motor vehicle or any other person entitled by the terms
10 of the warranty to enforce the obligations of the warranty.

11 2. "Motor vehicle" means a self-propelled vehicle designated
12 primarily for the transportation of persons or property over the public
13 highways.

14 3. "Used motor vehicle" means a motor vehicle that has been sold,
15 bargained, exchanged or given away or the title to which has been
16 transferred from the person who first acquired the vehicle from the
17 manufacturer, importer or dealer or agent of the manufacturer or importer
18 and that has been placed in bona fide consumer use.

19 4. "Used motor vehicle dealer" means a person or business that
20 sells or offers for sale a used motor vehicle after selling or offering
21 for sale four or more used motor vehicles in the previous twelve months
22 but does not include a bank or financial institution, an insurance
23 company, a business selling a used motor vehicle to an employee of that
24 business, a lessor selling a leased vehicle by or to the lessee of that
25 vehicle or to an employee of the lessee of that vehicle or a person who
26 buys, sells, exchanges or offers or attempts to negotiate a sale of or
27 exchange an interest in a classic car as defined in section 28-2483 or a
28 historic vehicle as defined in section 28-2484.

1 B. If the motor vehicle is a motor home, the provisions of this
2 article shall apply to the self-propelled vehicle and chassis but not to
3 those portions of the vehicle designed, used or maintained primarily as a
4 mobile dwelling, office or commercial space.

5 C. The provisions of this article do not apply [to a sale of a
6 motor vehicle to a purchaser for the purpose of resale for profit or] to a
7 motor vehicle with a declared gross weight over ten thousand pounds or
8 that is sold at a public auction.

9 Enroll and engross to conform

10 Amend title to conform

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